

Form No:HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

W.P No.1623 of 2026

Khurshid Ahmed

Versus

**Addl. Sessions Judge/Justice of Peace/Ex-Officio,
Rawalpindi, etc.**

S.No. of order/ proceeding.	Date of order/ proceeding	Order with signature of Judge, and that of parties or counsel, where necessary.
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04.05.2026 Mr. Taufiq Asif, Advocate for petitioner.

Petitioner (**Khurshid Ahmed**) by filing this writ petition has challenged order dated 10.02.2026 whereby learned Magistrate has accepted cancellation report pertaining to case FIR No.110 dated 09.10.2025 in offence under Section 379 PPC, Police Station Airport, Rawalpindi and order dated 16.04.2026 passed by Addl. Sessions Judge/Ex-Officio Justice of Peace, Rawalpindi whereby application of the petitioner for initiating departmental proceedings against Babar Ali Khan ASI and Ibrahim Balouch SHO, Police Station Airport, Rawalpindi and registration of the FIR in this respect was dismissed.

2. Available record shows that on 09.10.2025 Mashood Hussain Shah Moharrar H.C, Police Station Airport, Rawalpindi received call at 15 whereafter he contacted caller i.e Khurshid Ahmed (**petitioner**) who told that on the same day i.e 09.10.2025 at 4.45 p.m., someone had committed theft of his crop. Names of the accused have not been mentioned in the FIR.

3. After registration of the FIR, investigation started, during investigation neither the petitioner, being the aggrieved person, has appeared before the Investigating Officer nor produced any eyewitness of the occurrence against any accused. At the end of the investigation, concerned police officer(s) prepared cancellation report/report under Section 173 Cr.P.C regarding matter in issue which is hereby reproduced: -

"جناب عالی! مختصر حالات مقدمہ اس طرح پر ہیں کہ مورخہ 09/10/25 کو 15 کی کال ڈائری موصول ہوئی جس پر اطلاع دہندہ خورشید احمد نے بذریعہ فون نمبر 03049682537 سے رابطہ کیا ہے جبکہ مذکورہ کی کمپلیٹ پر درج ہیکہ مورخہ 09/10/25 بوقت 4/45pm بمقام بجنیال میں کالر کی زمین سے کسی نے فصل چوری کر لی ہے جو مضمون حالات واقعات سے سردست صورت جرم 379 تپ پایا جاتا ہے جس پر باہر علی خان ASI نے مقدمہ درج رجسٹر کر کے بر موقع تفتیش مقدمہ عمل میں لائی 15 کالر کو بر موقع طلب کیا گیا تھا جو حاضر نہ آیا مزید بر موقع تفتیش مقدمہ اور عام دریافت عمل میں لائی گئی تو 15 کالر کی فصل وہاں پر ہی ٹوٹی پھوٹی ہوئی موجود تھی جو بظاہر کسی جنگلی جانور نے فصل تباہ کی ہوئی تھی۔ موقع پر فصل مکئی موجود ہے درانتی سے یا کسی بھی چیز سے فصل کٹائی ہو نمانہ پائی گئی۔ وقوعہ سرزد ہونا نہ پایا گیا ہے۔ حالات واقعات کی روشنی میں مقدمہ ہذا قابل چالان نہیں بلکہ قابل اخراج ہے لہذا رپورٹ بصیغہ اخراج مرتب کر کے ارسال ہے۔"

4. Cancellation report/report under Section 173 Cr.P.C was submitted before the concerned Judicial Magistrate who while agreeing with it has passed following impugned order dated 10.02.2026: -

"The perusal of record reveals that the complainant has called on 15 for information of alleged occurrence. He has been summoned by the local Police but he neither appeared before the I.O nor produced his witnesses during investigation. The I.O has not found any sufficient incriminating material against the accused to connect him with commission of offence. In these circumstances, I **agree** with the instant cancellation report, which is also duly verified by the higher Investigation Authorities as well as prosecution. The prosecution does not want to further prosecute instant case. The instant case FIR is cancelled and the concerned SHO is directed to cross the FIR, in the register of FIRs by marking with red line. Mr. Adeel ur Rehman (Ahlmad-1) is directed to consign

the file to the record room its due completion.”

5. The petitioner instead of pursuing his criminal case (**mentioned above**) filed an application under Sections 22-A & 22-B Cr.P.C on 06.03.2026 in the Court of Additional Sessions Judge/Ex-Officio, Justice of Peace, Rawalpindi against police officers (**discussed above**) which was dismissed *vide* impugned order dated 16.04.2026.

6. Considering above discussed peculiar facts and circumstances of this case, this Court is of the view that the concerned Judicial Magistrate acted within its jurisdiction in accepting cancellation report. This writ petition is not maintainable against lawful order passed by the Judicial Magistrate. No illegality or irregularity has been pointed out in the impugned orders by the learned counsel for the petitioner.

7. The petitioner has an alternate efficacious remedy by filing a private complaint regarding matter in issue, which is directed to be decided, if filed, in accordance with law, without being influenced from the impugned orders.

8. The argument of learned counsel for the petitioner that he wanted the accused to be arrested and recoveries to be affected from them which is not possible through the medium of a private complaint has no substance, by virtue of the provisions of section 202(1), Cr.P.C a court seized of a private complaint can “direct an inquiry or investigation to be made by any Justice of Peace or by a police officer or by such other person as it thinks fit”. If court seized of a

private complaint deems it appropriate to direct an investigation to be carried out in respect of the allegations made, then the powers available during an investigation, enumerated in Part V, Chapter XIV of the Code of Criminal Procedure, 1898 read with section 4 (1)(1) of the same Code, include the powers to arrest an accused person and to affect recovery from his possession or at his instance. Such powers of the investigating officer or the investigating person recognize no distinction between an investigation in a State case and an investigation in a complaint case. Reliance is placed on **(PLD 2018 SC 595)** Mst. Sughran Bibi Vs. The State.

9. This petition is held to be misconceived and is **dismissed** having no merits.

(SADAQAT ALI KHAN)
JUDGE

Approved for reporting

JUDGE

*Anwaar**